

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GWENDOLYN MARTIN,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. DANILO MALDONADO;
P.O. HUGO ORTEGA; the individual defendants sued
individually and in their official capacity,

Defendants.

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To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
June 13, 2016

KUSHNER LAW GROUP, PLLC
16 Court Street, Suite 2901
Brooklyn, New York 11241
(718) 504-1440



MICHAEL PETER KUSHNER, ESQ.
Attorney for Plaintiff

Defendants' addresses: THE CITY OF NEW YORK: C/O Zachary W. Carter, Corporation Counsel for the City of New York, 100 Church Street, New York, New York 10007; P.O. DANILO MALDONADO and P.O. HUGO ORTEGA, c/o NYPD, 1 Police Plaza, New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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GWENDOLYN MARTIN,

Plaintiff, **COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. DANILO
MALDONADO; P.O. HUGO ORTEGA; the individual
defendants sued individually and in their official capacity,

Defendants.

Index :

Index Purchased : 6/13/2016

Basis of Venue : Occurrence of
Incident – 490 Williams Avenue,
Brooklyn, New York

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Plaintiff, GWENDOLYN MARTIN, by and through his attorneys, the
KUSHNER LAW GROUP, PLLC, states as follows:

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §§ 1983 and 1988 for the defendants' commissions of acts under color of law in violation of plaintiff's rights under the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

2. Ms. Martin's complaint stems from incident(s) that began on or about June 13, 2013. During the incident(s), Ms. Martin was subjected to a false arrest and imprisonment, excessive force, retaliation for free speech, an unlawful search and seizure, malicious prosecution, intentional and negligent infliction of emotional distress, assault and battery, harassment, unconstitutional conditions of confinement, and to a deprivation of her constitutional, civil, and common law rights.

3. Defendants' actions were contrary to law, contrary to sound professional police practice, and contrary to the norms of a civilized society. This complaint, arising from

these outrageous and unlawful acts, seeks compensatory and punitive damages, costs, disbursements, and attorneys' fees pursuant to applicable federal civil rights law.

JURISDICTION & VENUE

4. This action arises under the First, Fourth, Eighth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§ 1983 and 1988.

5. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court, Kings County.

PARTIES

6. Plaintiff Gwendolyn Martin is a Citizen of the United States and a resident of the State of New Jersey.

7. Defendant THE CITY OF NEW YORK (the "City") is a municipal corporation organized under the laws of the State of New York.

8. The New York City Police Department (the "NYPD") is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitution and laws of the United States and the State of New York.

9. At all relevant times herein, defendant P.O. Danilo Maldonado was employed as a police officer by the NYPD and was acting in the capacity of agent, servant, and employee of the City. At all relevant times herein, defendant P.O. Maldonado held the rank of Police Officer and was assigned to the Narcotics Bureau, Brooklyn North. At all relevant times herein, defendant P.O. Maldonado's shield number was 1059.

10. At all relevant times herein, defendant P.O. Hugo Ortega was employed as a police officer by the NYPD and was acting in the capacity of agent, servant, and employee of the City. At all relevant times herein, defendant P.O. Ortega held the rank of Police Officer and was assigned to the Narcotics Bureau, Brooklyn North. At all relevant times herein, defendant P.O. Hugo's shield number was 3534.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

12. On or about June 13, 2013 at approximately 6:30 a.m., at and in the vicinity of 490 Williams Street, Apartment 4C, Brooklyn, New York 11207, defendants committed the following unlawful acts against the plaintiff:

13. On or about June 13, 2013 at approximately 6:30 a.m., at and in the vicinity of 490 Williams Street, Apartment 4C, Brooklyn, New York 11207 Plaintiff was falsely arrested and imprisoned by the defendants.

14. The plaintiff was subjected to an unlawful search and seizure when the defendants, without either consent, an arrest warrant, a valid search warrant, probable cause, or reasonable suspicion that plaintiff (or any third party) had committed a crime detained plaintiff

and searched her. Those defendants who did not actively participate in this unlawful behavior witnessed it but did nothing to protect plaintiff from it despite the fact that they had a duty to do so.

15. Plaintiff was thereafter arrested without probable cause by the defendants before being taken to the 75th Precinct, located in Brooklyn, New York. Plaintiff was then transported to Brooklyn Central booking, where she was subjected to depraved, filthy, and inhumane conditions of confinement. During the arrest of the Plaintiff, the defendants committed excessive force against the Plaintiff by subjecting her to excessively tight handcuffs. Plaintiff requested that the cuffs be loosened, however her requests were ignored.

16. While Plaintiff was incarcerated at the 75th Precinct and in Brooklyn Central Booking awaiting arraignment, the defendants, acting in concert, and pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that Plaintiff had committed various crimes, and based upon the defendants' false allegations, the Kings County District Attorney's Office prosecuted Plaintiff under docket number 2013KN045036.

17. Each of the defendant officers was present during, and participated in, Ms. Martin' arrest.

18. Ms. Martin continually insisted that he was innocent of any alleged crimes involving the shooting.

19. Ms. Martin was eventually brought by the defendant police officers to Central Booking.

20. A criminal complaint was filed against Ms. Martin charging her with Unlawful Possession of Marijuana.

21. The NYPD has formal policies, contained in its Patrol Guide, by which it authorizes the conduct of the arrest and prosecution of those present during the execution of search warrants under specific guidelines.

22. This notwithstanding, on information and belief, the NYPD has, and had at the time of the incident giving rise to this Complaint, a de facto policy and practice of arresting innocent persons and accusing them of being involved in criminal activity during the execution of search warrants other than those specified in the Patrol Guide or NYPD directives in order to meet productivity goals and quotas.

23. Upon information and belief, while Ms. Martin was incarcerated at the NYPD precinct and in Central Booking, awaiting arraignment, the officers who arrested her, acting in concert, and pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes.

24. Upon information and belief, the officers who arrested plaintiff maliciously withheld relevant information from the District Attorney's Office, showing that Ms. Martin was innocent of all charges.

25. Ms. Martin was held in custody for approximately 18 hours.

26. Upon information and belief, all charges were dismissed and sealed against plaintiff.

27. The above-stated malicious prosecution was initiated without probable cause to believe that the prosecution would be successful and without regard to Ms. Martin's innocence.

28. The above-stated malicious prosecution was initiated with malice because it was not based upon probable cause.

29. The above-stated malicious prosecution terminated in Ms. Martin's favor when the charges were dismissed and sealed against him.

30. The above-stated malicious prosecution caused a significant post-arraignment liberty restraint on Ms. Martin, namely the period of time that she spent incarcerated and the numerous appearances he was required to make before the charges were dismissed and sealed.

31. Upon information and belief, the arrest of the plaintiff was motivated wholly or in part by the individual defendants' need to meet quantitative enforcement "productivity goals" promulgated by the defendant City of New York.

32. Upon information and belief, the arrest of the plaintiff was motivated wholly or in part by the individual defendants' need to meet quantitative enforcement "productivity goals" promulgated by policymakers and/or supervisory staff of defendant City of New York's police department.

33. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may be inferred as a finding of fact when, on June 24, 2010, the court in *Floyd v. City of New York*, United States District Court, Southern District of New York, 08 CV 1034, ordered the release of documentation in the possession of the defendant New York City Police Department's

Internal Affairs Bureau, which investigates claims of serious misconduct and corruption of members of the NYPD. The court held that the plaintiff in that case, in order to prove the existence of unconstitutional arrest quotas, had overcome the law enforcement privilege due to the strong public interest in uncovering the civil rights violations alleged in the Complaint, and by demonstrating a compelling need to review such documentation.

34. The existence of the aforesaid unconstitutional arrest quota custom and/or policy was confirmed as a finding of fact when, on February 18, 2011, the jury in *Bryant v. City of New York*, Kings County Supreme Court Docket #022011/2007, found that the plaintiff in that case's arrest had resulted from a policy "regarding the number of arrests officers were to make that violated plaintiff's constitutional rights and contributed to her arrest" imposed by defendant City of New York.

35. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may additionally be inferred from repeated occurrences of similar wrongful conduct, as documented in lawsuits including but not limited to the following civil rights actions filed against the City of New York:

- a. *Alvin Williams v. The City of New York, et al.*, United States District Court, Southern District of New York, 05-cv-4013.
- b. *Corey Williams v. The City of New York, et al.*, United States District Court, Eastern District of New York, 07-cv-5362.
- c. *Joseph Malachi LaDoucier v. The City of New York, et al.*, United States District Court, Southern District of New York, 10-cv-5089.

36. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on November 8, 2010, that commanders are permitted to set “productivity goals.”¹

37. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the posting of lists of quantitative targets for various forms of summonses at the 77th Precinct in Brooklyn. *See* fn1.

38. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the tape recordings acquired by WABC-TV/DT, including, among other admissions, a 41st precinct sergeant explaining that each of his officers is held to a twenty summons per month and one arrest per month enforcement quota, as reported by the media on March 3, 2010.²

39. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the tape recordings acquired by the Village Voice, including, among other admissions, an 81st precinct sergeant telling his officers to make “special” arrests as

¹ Fanelli, James, “Cops at Brooklyn’s Crime-Ridden 77th Precinct Told to Meet Quotas for Moving Violations, Memos Say,” New York Daily News, November 8, 2010. Article incorporated by reference herein and available online at http://www.nydailynews.com/ny_local/2010/11/08/2010-11-08_cops_told_to_meet_quotas.html.

² Hoffer, Jim, “NYPD Officer Claims Pressured to Make Arrest,” WABC News, March 3, 2010. Article incorporated by reference herein and available online at <http://abclocal.go.com/wabc/story?section=news/investigators&id=7305356>.

directed by their superiors even if they must void the arrest at the end of their shifts, as reported by the media on May 11, 2010.³

FIRST CLAIM

(FALSE ARREST / UNLAWFUL SEARCH AND SEIZURE)

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. Defendants falsely arrested plaintiff without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime.

42. Defendants unlawfully searched plaintiff and seized him after their unlawful search returned no results for contraband or firearms.

43. Accordingly, defendants are liable to plaintiff for false arrest and unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(DENIAL OF THE SIXTH AMENDMENT RIGHT TO A FAIR TRIAL)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants are liable to plaintiff because they created false information likely to influence a jury's decision and forwarded that information to prosecutors, violating plaintiff's constitutional right to a fair trial, and the harm occasioned by such an unconscionable

³ Rayson, Graham, "The NYPD Tapes, Part 2: Bed-Stuy Street Cops Ordered: Turn This Place Into a Ghost Town." Village Voice, May 11, 2010. Article incorporated by reference herein and available online at <http://www.villagevoice.com/2010-05-11/news/nypd-tapes-part-2-bed-stuy/>

action is redressable in an action for damages under the Sixth Amendment to the United States Constitution and 42 U.S.C. § 1983.

THIRD CLAIM

(42 U.S.C. § 1983 CONSPIRACY)

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff.

FOURTH CLAIM

(42 U.S.C. § 1985 CONSPIRACY)

48. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

49. Defendants are liable to plaintiff because they conspired against plaintiff based on racial or other invidiously discriminatory animus for the purpose of depriving plaintiff of equal protection of the privileges and immunities under the law, and committed an act in furtherance of the conspiracy, which injured plaintiff.

FIFTH CLAIM

(MALICIOUS PROSECUTION)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiff by knowingly, intentionally, and maliciously providing false statements to

prosecutors and/or the criminal court(s), which alleged plaintiff had committed various crimes; and based upon these false statements, prosecutors prosecuted plaintiff until the case against plaintiff were dismissed in their entirety.

52. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

53. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

54. The above-stated malicious prosecution(s) caused a sufficient post-arraignment liberty restraint on plaintiff.

SIXTH CLAIM

(42 U.S.C. § 1983 AGAINST ALL DEFENDANTS)

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. All of the aforementioned acts of the defendants, their agents, servants, and employees were carried out under the color of state law.

57. All of the aforesaid acts deprived plaintiff St. Jean of his rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments of the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

58. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officer, with all of the actual and/or apparent authority attendant thereto.

59. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

60. The defendant police officers and defendant City of New York, collectively and individually, while acting under color of state law, engaged in Constitutionally-violative conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

61. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was arrested, and he was humiliated, without probable cause.

62. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer violations of his civil rights, emotional distress, anguish, fear, humiliation, loss of freedom, legal expenses, and damages to his reputation and standing within his community.

63. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendant in a sum of money to be determined at trial.

SEVENTH CLAIM
(MUNICIPAL LIABILITY UNDER *MONELL*)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Defendants arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty and well-being, safety and constitutional rights.

66. The acts complained of were carried out by the aforementioned individual defendant police officers in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

67. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officer and officials pursuant to customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

68. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. Wrongfully arresting innocent persons in order to meet quantitative "productivity goals" (i.e. arrest quotas).

69. The particular arrest of the plaintiff is believed to have been motivated in whole or in part by the aforesaid unconstitutional arrest quota custom and/or policy because they were undertaken in the absence of probable cause to arrest.

70. The particular arrest of the plaintiff is believed to have been motivated in whole or in part by the aforesaid unconstitutional arrest quota custom and/or policy because it was undertaken in a manner which indicated that the individual defendant officers who

participated in the plaintiff's arrest made the determination to search and arrest plaintiff before determining why the plaintiff should be searched and arrested.

71. The particular arrest of the plaintiff is believed to have been motivated in whole or in part by the aforesaid unconstitutional arrest quota custom and/or policy because the plaintiff was arrested despite the fact that probable cause to search or arrest an individual is not met in this case.

72. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department evinced a deliberate indifference to the safety, well-being and constitutional rights of plaintiff St. Jean.

73. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate causes of the constitutional violations suffered by plaintiff St. Jean as alleged herein.

74. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff St. Jean as alleged herein.

75. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff St. Jean was falsely arrest and incarcerated.

76. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer a violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses, and damages to his reputation and standing in his community.

77. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

EIGHTH CLAIM
(EQUAL PROTECTION UNDER 42 U.S.C. §§ 1981 AND 1983)

78. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

79. At all times described herein, the plaintiff was possessed of the right to equal protection under the laws, as guaranteed under the 14th Amendment to the United States Constitution.

80. Defendant police officers arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety, and constitutional rights.

81. The acts complained of were carried out by the aforementioned individual defendant police officers in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

82. Plaintiff was falsely accused of crimes and violations and was taken into police custody and detained against his will.

83. Following his arrest, plaintiff was charged with crimes and violations.

84. The above-described charges were a pretext intended to justify the plaintiff's illegal arrest.

85. The actions of the defendant police officers heretofore described, constituted unlawful detention, imprisonment, and malicious prosecution and were designed to

and did cause pain and suffering both in violation of the plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §§ 1981 and 1983 and the United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York and in direct retaliation for the plaintiff's exercise of his civil and constitutional rights of free speech, free expression and expressive association as guaranteed by the First and Fourteenth Amendments to the United States Constitution as well as the Constitution of the State of New York.

86. As discussed by the court in *Brown v. City of Oneonta*, 221 F.3d 329 (1999), the existence of an equal protection violation may be confirmed by a finding that a similarly situated group of non-minority individuals is treated differently. That is, the plaintiff must allege that a government actor intentionally discriminated against them on the basis of race.

87. On March 1, 2010, the New York Times published an Op-Ed piece entitled "Watching Certain People," wherein the author cited to New York City Police Department Statistics showing that of the 2,798,461 stops made by police officers during the years 2004 through 2009, African-American men accounted for 1,444,559 of those stops, and Hispanics accounted for 843,817 of those stops, or 51.6 percent and 30.1 percent respectively. The vast majority of those stopped, 88.2 percent, were not guilty of any crime.⁴

88. On February 22, 2011, the New York Daily News published an article citing New York Police Department stops for the year 2010, which numbered 601,055. This

⁴ Herbert, Robert, "Watching Certain People," New York Times, March 1, 2010. Article incorporated herein by reference and available online at: <http://www.nytimes.com/2010/03/02/opinion/02herbert.html?scp=7&sq=policy%20stop%20frisk%20african%20american%20men&st=cse>

figure marked a 4.3 percent increase from the year 2009, and African-American and Latino men account4d for approximately 85 percent of all stops.⁵

89. The particular arrest of the plaintiff is believed to have been motivated in whole or in part by a custom or practice of racism of victimization, not of hate, whereby minority individuals are charged with crimes and violations such as trespassing, resisting arrest, disorderly conduct, obstruction of governmental administration, and narcotics-related offenses in the absence of probable cause to arrest, due to perceived ease of prosecution of such minority individuals.

90. The defendant police officers, through their actions, carried out a discriminatory application of such laws, driven by a discriminatory motivation of what might otherwise be facially neutral statutes due to a perceived ease of prosecution.

91. As a result of the aforementioned conduct, the defendants have violated plaintiff's constitutional rights to equal protection, and the plaintiff is entitled to seek redress under 42 U.S.C. §§ 1981 and 1983, and is further entitled to injunctive relief to the extent necessary to prevent further disparate treatment and retaliation.

92. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer a violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation and standing in his community.

⁵ Parascandola, Rocco, "New York Police Department Stopped More than 600,000 in 2010, the Highest Number Ever Recorded," February 22, 2011. Article incorporated herein by reference and available online at: http://articles.nydailynews.com/2011-02-22/news/29442269_1_latino-men-fight-crime-new-yorkers

93. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

94. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To be free from unwarranted and malicious criminal prosecution;
- d. To be free from malicious abuse of process;
- e. To receive equal protection under the law.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, disbursements, and attorney's fees, pursuant to 42 U.S.C. § 1988;
and
- d. Such other and further relief as this Court may deem just and proper,
including injunctive and declaratory relief.

DATED: Brooklyn, New York
June 13, 2016


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